

Rajendra Gaur v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 8 February 2023 · Writ-C No. 3804 of 2023 · **Writ disposed for a fresh order under the Supply Code**

HEADNOTE

A writ against a demand notice and recovery certificate for electricity dues in a theft case was disposed of after the Electricity Department stated that the recovery had been withdrawn and that a fresh order would be passed after hearing. The Court left the respondents at liberty to pass that order strictly in accordance with the procedure under the Electricity Supply Code, 2005, and construed no clause.

FACTUAL SUMMARY

Rajendra Gaur filed Writ-C No. 3804 of 2023 against the State of U.P. and three others, challenging a demand notice dated 29 March 2019 and a recovery certificate dated 18 June 2019 issued by respondent no. 3 for electricity dues in a case of theft of electricity. On 3 February 2023 counsel for the respondent Bank sought time and the writ was directed to be listed afresh. On 8 February 2023 counsel for the Electricity Department stated, on instructions, that the impugned recovery had been withdrawn.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Theft recovery withdrawn; fresh order under the Supply Code

HOLDING

Where the Electricity Department states that the impugned recovery of electricity dues in a theft case has been withdrawn and that a fresh order will be passed after opportunity of hearing, the writ challenging the demand notice and recovery certificate is disposed of, with liberty to the respondents to pass that fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. The Court did not identify or construe any clause. ¶ 1

PRINCIPLE TAGS

procedural-listing-no-construction The writ was first adjourned and then disposed on the Department's statement that the theft recovery stood withdrawn. The only direction was liberty to pass a fresh order after hearing, strictly under the procedure in the Electricity Supply Code, 2005. No clause was construed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 29 MARCH 2019 AND THE RECOVERY CERTIFICATE DATED 18 JUNE 2019 WERE LAWFUL, AND WHICH CLAUSE OF THE ELECTRICITY SUPPLY CODE, 2005 GOVERNS THE FRESH ORDER.

The Department withdrew the recovery. The Court did not decide the theft assessment. ¶ 1